



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles W. Bloom, AICP, Planning and Development Director
Subject: A Resolution Approving the Jolly Rogers Urban Renewal Plan and Project Pursuant to Wyoming Statute § 15-9-110.
Date: June 10, 2024

Background:

The item for consideration is a **Resolution**. The proposed Governing Body review schedule is as follows:

- Introduction and Public Hearing October 13, 2025
- Public Services Committee October 20, 2025
- Final Consideration October 27, 2025

Summary:

The City of Cheyenne adopted Ordinance No. 4381 and Resolution No. 6156 on June 28, 2021, authorizing the creation and use of powers for the Urban Renewal Authority. Included within the Urban Renewal Powers is the ability to make Urban Renewal Plans and Projects. The attached plan serves to establish the Bell Building Urban Renewal Plan and Project for the City of Cheyenne. The Governing Body adopted a resolution on July 10, 2023, declaring the area as blight pursuant to § 15-9-107, thus making the area eligible for an Urban Renewal Plan and Project. The Bell Building Urban Renewal Plan will overview the urban renewal boundaries of the project area and authorized urban renewal activities, the project financing (including tax increment financing), the terms of the plan, the conformance of the urban renewal project with adopted City of Cheyenne plans, the conformance of the project with Wyo. Stat. § 15-9-110, and the procedures to amend the plan.

Approval of this Plan and Project would freeze the property tax distribution for tax year 2026 for a period of 25 years. The current tax base for 2025 is \$3,543.10, and the 2026 base may be higher or lower depending on the new assessment. Taxes collected in excess of the 2026 base amount would constitute the tax increment over the 25-year period.

The applicant's Plan and Project estimate that approximately \$930,000 in total increment could be generated over a 20-year period. In an interview with the County Assessor, the applicant indicated that the Assessor's estimate of the 20-year increment was approximately \$790,000. Actual tax increment generation is difficult to predict, particularly given current uncertainties in property tax assessments. The City bears no financial responsibility in the event that the increment fails to perform as projected.

The Planning Commission reviewed this item at their September 15, 2025, meeting and **recommended the Governing Body deny** "for failure to find the program financially workable, failure to meet the goals

increasing public access downtown, and failure to increase public private partnership as the project appears to favor private interests.” Discussion indicated that the reason for this recommendation was to trigger discussion at the Governing Body level and a desire for the Planning Commission to receive additional feedback on what the Governing Body believes is the appropriate use of tax increment financing dollars for future guidance.

The Urban Renewal Authority (URA) Board reviewed this item at their meeting on September 4, 2025, and recommended **approval with the following condition:**

“Prior to Planning Commission consideration, the applicant revise the Authorized Urban Renewal Activities section (p 8) of the Plan and Project to ensure alignment with Wyoming Statute § 15-9-113 and established standards for expenditure of public funds as follows:

- a. Historic Rehabilitation subsection. References to “historic rehabilitation” shall be revised to “general rehabilitation” clearly serving a public purpose or providing a community benefit and not serving solely private interests.
- b. The following additional language shall be incorporated: “Improvements that primarily serve private interests are ineligible for public funding, even where incidental public benefits may exist. Public funds may only be applied where the improvement is structured to provide a direct, measurable, and enforceable return to the public, consistent with Wyoming State Statutes and the Wyoming Constitution.”

The applicant revised the Plan and Project in accordance with the URA Board conditions for review by the Planning Commission.

Attached is the memorandum that was presented to the Planning Commission, with the attached staff report presented to the URA Board. The Plan and Project presented to the Planning Commission that was attached has been excluded, as it is now incorporated as Attachment A to the resolution. Condition a has been revised and is reflected in the first bullet point on page 10, and revisions in accordance with condition b, above, are reflected in italics at the bottom of page 18. The previous Plan and Project submitted to the URA Board can be found on the URA website, on the URA Board’s September 5, 2025, agenda, at www.cheyennecity.org/URA.

Attachments:

1. Resolution
2. Planning Commission Staff Report (Note, the Plan and Project has been omitted because it is reincluded as Attachment A of the Resolution).

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION APPROVING THE BELL BUILDING URBAN RENEWAL PROJECT AND THE BELL BUILDING URBAN RENEWAL PLAN PURSUANT TO WYOMING STATUTE § 15-9-110."

WHEREAS, following a public hearing, pursuant to Resolution No. 6334, adopted by the Governing Body on July 10, 2023, and in accordance with Wyoming Urban Renewal Code, the City of Cheyenne determined certain areas to be appropriate for an urban renewal project;

WHEREAS, included within the scope of Resolution No. 6334, the Governing Body found that the previously established downtown urban renewal area should be expanded to include the area of Cheyenne located between Bent Avenue and Morrie Avenue from east to west, and extending from approximately 20th Street and Lincolnway to the Union Pacific Railroad corridor from north to south;

WHEREAS, Full Circle Realty, LLC, submitted the Bell Building Plan and Project, a combined document serving as both the urban renewal plan and as the urban renewal project, as defined by Wyoming Statute § 15-9-103(a)(xviii) and Wyoming Statute Section 15-9-103(a)(xix), respectively (hereinafter referred to as "the Plan" and "the Project");

WHEREAS, the Bell Building is located within the expanded downtown urban renewal area described above, as depicted in the submitted Plan and Project documents, and is therefore authorized for potential urban renewal activities;

WHEREAS, on September 4, 2025, the Cheyenne Urban Renewal Authority Board reviewed the Plan and: (i) found it to be in conformity with Plan Cheyenne, the City of Cheyenne and Laramie County's comprehensive land use and community development plan; and (ii) recommended approval of the Plan subject to revisions ensuring alignment with Wyoming Statute § 15-9-113, which prescribes the powers of a municipal urban renewal authority, and with established standards governing the expenditure of public funds, including:

- a. Revising all references to "historic rehabilitation" to "general rehabilitation," which shall clearly serve a public purpose and not solely private interests; and
- b. Inserting language clarifying that improvements primarily benefitting private interests are ineligible for public funding, and that public funds may only be applied where the improvement provides a direct, measurable, and enforceable public return consistent with Wyoming statutes and the Wyoming Constitution.

WHEREAS, Wyoming Statute § 15-9-108 requires that, prior to approval of an urban renewal project, the applicable plan be submitted to the City Planning Commission for review and recommendation concerning its conformity with Plan Cheyenne, and prior to such review Full Circle Realty, LLC, submitted a revised Plan incorporating the conditions imposed by the Urban Renewal Authority Board;

WHEREAS, on September 15, 2025, the City Planning Commission reviewed the revised Plan, found it to be in conformity with PlanCheyenne, and recommended that the Governing Body not adopt the Plan for failure to find the Program financially workable, failure to meet the goals increasing public access downtown, and failure to increase public private partnership as the project appears to favor private interests;

WHEREAS, on September 27, 2025, and October 4, 2025, the City published notice of the public hearing as required by Wyoming Statute § 15-9-109(b) in a newspaper having a general circulation in the area, and on September 25, 2025, mailed notice to all affected taxing agencies and property owners within the designated urban renewal area;

WHEREAS, on October 13, 2025, the Governing Body held a public hearing on the Plan and Project in accordance with Wyoming Statute § 15-9-109(a) and upon review of the Plan and the Project, attached hereto as Attachment A and incorporated herein by reference, makes the following findings:

- (i) The Plan conforms to PlanCheyenne, and is consistent with defined local objectives respecting infill opportunities, locations for future revitalization, downtown revitalization and mix of uses, infill and revitalization incentives, building reuse, mix of downtown activities, and downtown placemaking;
- (ii) The Plan is sufficiently complete to indicate land acquisition, demolition and removal of structures, redevelopment, improvements, rehabilitation as may be proposed to be carried out in the urban renewal area, and any associated zoning and planning modifications;
- (iii) Because the Plan does not propose relocation of residential properties, there is no need to designate a method for relocation of families displaced from the urban renewal area;
- (iv) The Plan gives due consideration to the provision of adequate park and recreational areas and facilities that may be desirable for neighborhood improvement, with special consideration for the health, safety and welfare of children residing in the general vicinity; and
- (v) The Plan affords maximum opportunity, consistent with municipal needs, for the rehabilitation or redevelopment of the urban renewal area by private enterprise.

WHEREAS, approval of the Plan and Project authorizes, pursuant to Wyoming Statute § 15-9-120, the allocation of the portion of property tax revenues designated for tax increment financing, to be deposited into the Urban Renewal Fiduciary Fund and applied exclusively to the Bell Building Urban Renewal Plan and Project.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Bell Building Urban Renewal Plan and Bell Building Urban Renewal Project, as set forth in Attachment A, are hereby approved.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk



▶ Bell Building Urban Renewal Plan & Project



City of Cheyenne
September 2025

MBX
Architecture 

Submitted by 2720 Capitol, LLC

ATTACHMENT A

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MBX
Architecture 

2720 CAPITOL, LLC.

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Introduction

The City of Cheyenne, in accordance with Wyoming Statute **§ 15-9-106** and adopted Ordinance No 4381, and Resolution No 6156, which creates authority for the Urban Renewal Authority, has approved urban renewal projects to address blight and promote economic revitalization. The redevelopment of such blighted areas are vital for the health, safety, welfare, and economic development of the community. Therefore, the City Council has delegated authority to the Urban Renewal Authority to review and recommend urban renewal plans and projects to the City of Cheyenne.

This plan will establish **The Bell Building as an Urban Renewal Plan and Project** for the City of Cheyenne. **The Bell Building Urban Renewal Plan and Project** aims to restore the **Bell Building (1605 Central Ave, Cheyenne)**, a historically

significant yet deteriorated structure in downtown Cheyenne. This plan outlines existing conditions, proposed redevelopment efforts, financing strategies, and compliance with city and state policies.

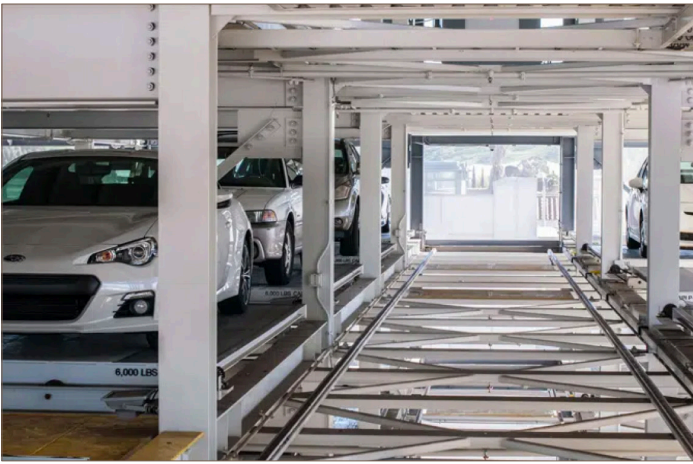
The Bell Building will be restored to its original use of public parking, with the top floor designated for loft living. The Bell Building construction was completed in 1913 and was originally a three-story Buick storage garage. It had an open floor plan with steel beams and an elevator system that allowed cars to be stored on each of the three levels and displayed in the windows. Following that, it was used for parking for the Plains Hotel, then converted to offices in the 1950's. At some point, the roof was expanded upwards and a fourth floor was added to the building. Each floor is approximately 4,500 square feet with a footprint of 50 x 90 feet. Currently, there are four floors, but the fourth floor is considered structurally unsafe and will need to be removed prior to any further development.



The building has been dark since the 1980's. Since then, strategic and incremental efforts have been made to preserve the structure. The building was mothballed in 2020 to prevent further deterioration. All asbestos was abated, a new roof was added, and plywood was placed over the windows. The plywood was frequently disrupted by the intrusion of pigeons and vandals, allowing snow and water into the structure. Graffiti, dead pigeons, and pigeon feces became a growing concern. In 2024, new windows and storefronts were placed to seal the building and bring significant curb appeal to the block. Now, it's time to put the building back into full use.



The first floor will have one small storefront that will serve to promote foot traffic and retail in downtown Cheyenne. The middle of the two storefronts will be a garage door in which cars enter in and out of and wait to be transported to their designated spots. Adjacent to the car staging area will be the holding area for users as they await their cars to be retrieved. Utilizing advanced technology, the interior of the building on floors one and two will be converted to a highly secure rack and rail garage that holds approximately 32 cars. The third floor would hold five market rate loft apartments that include studio, one bedroom, and two bedrooms. The fourth floor will be removed to ensure safety of the building and its occupants.



FRONT ELEVATION

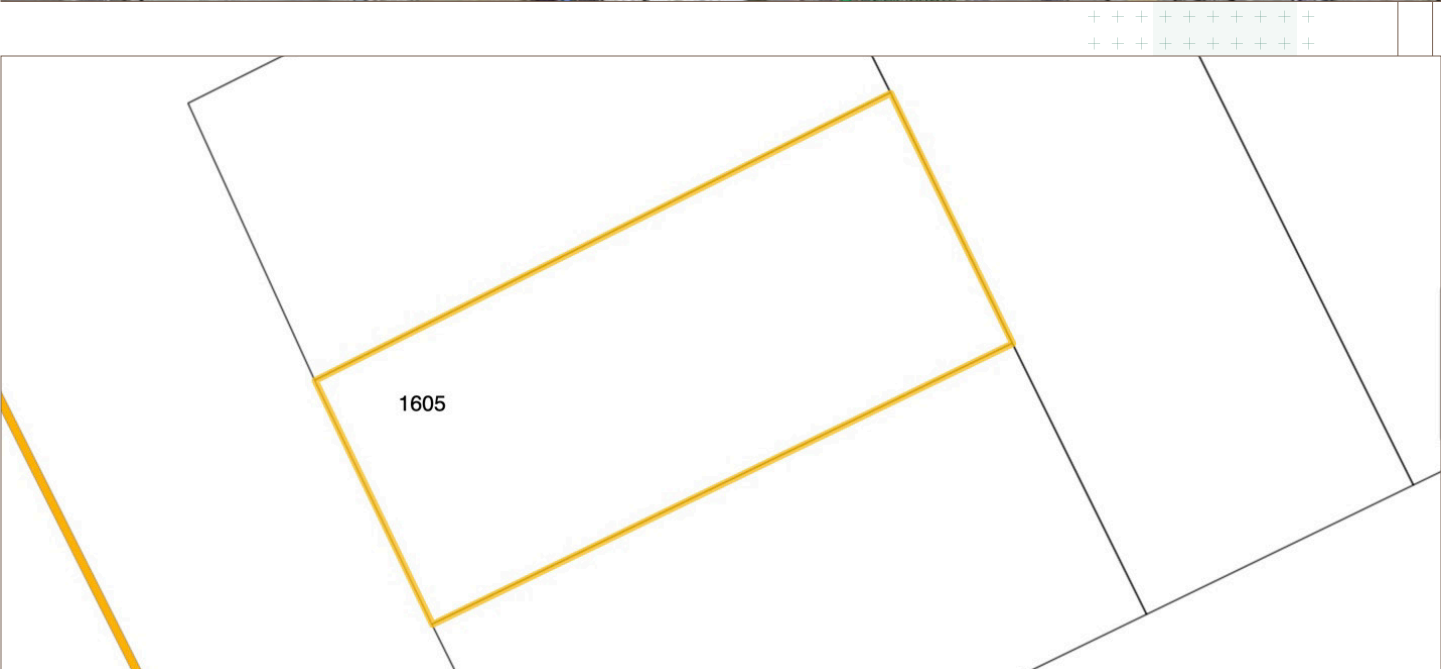
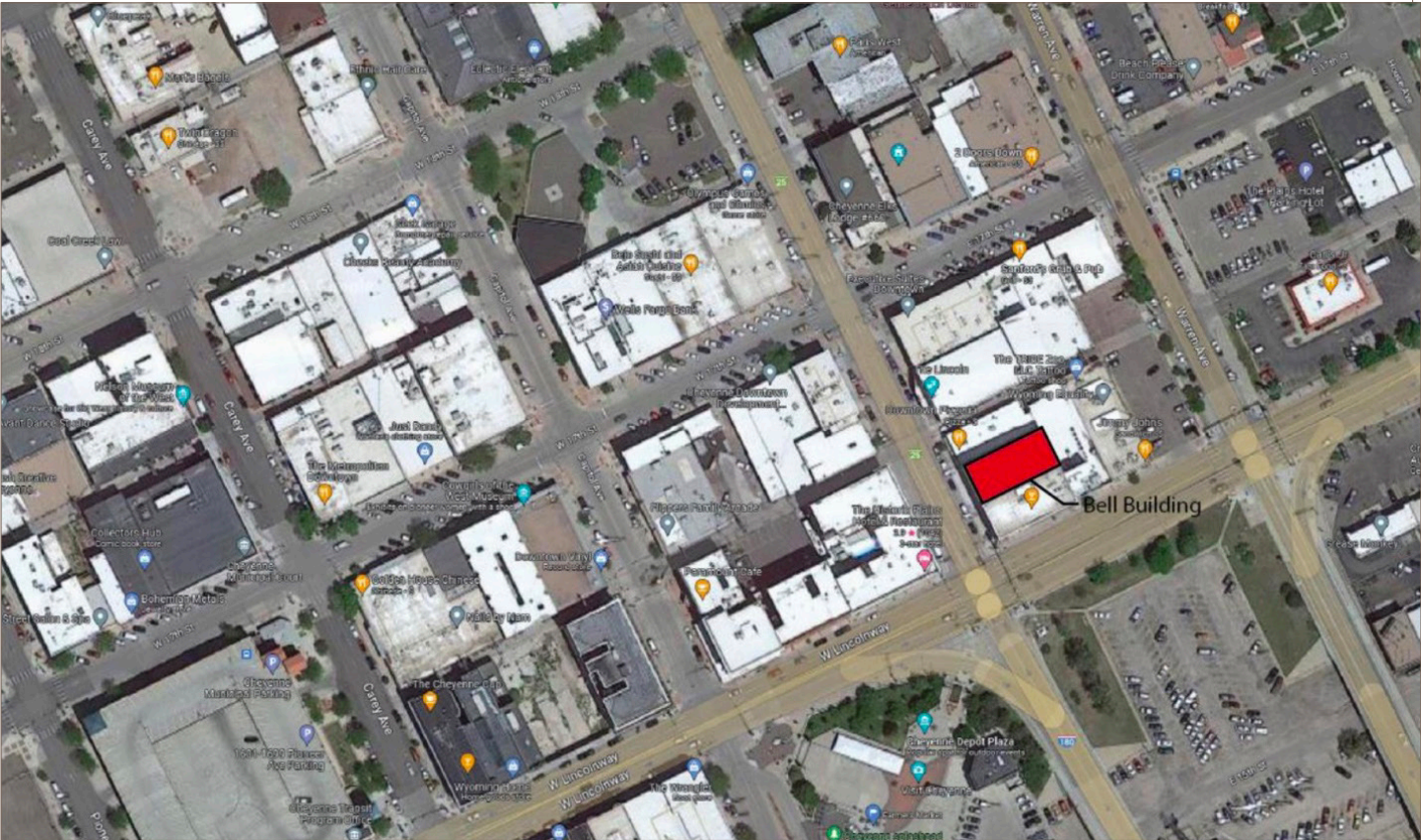


TDSi
The Design Studio, inc.
Architecture + Interior Design
2020.04.14

Renovation of the
BELL BUILDING
CHEYENNE, WYOMING

Urban Renewal Boundaries

The project encompasses the entire parcel at 1605 Central Ave and adjacent public infrastructure necessary for improvements. Situated in downtown Cheyenne, the Bell Building's location makes it a key candidate for renewal, contributing to economic growth, historic preservation, and community revitalization. The building has already been approved by WYDOT for entry and exit of cars onto the property (Attachment A).



Conditions Survey

A comprehensive conditions survey, referencing prior urban renewal studies (Jolly Rogers and Expanded Downtown Study published in Spring 2023 and adopted by City Council on July 10, 2023), confirms that the Bell Building meets the Wyoming Statute § 15-9-103 definition of blight due to:

- **Deteriorated Structural Conditions:** The building exhibits facade decay, outdated and missing infrastructure, and internal deterioration layered with pigeon feces and graffiti. The fourth floor is structurally unstable and will need to be removed, a new structure will need to be installed at the roof connection to ensure the integrity of the building and safety of the building occupants.
- **Unsafe and Obsolete Systems:** Electrical, plumbing, HVAC, elevator systems, and fire suppression systems have all been removed. There is no water to the building currently and no life safety utilities or services in the structure including a sprinkler system, emergency exits, stairs, or elevators. A new sprinkler system, fire rated doors, access to elevator, fire and smoke alarms and updated critical utilizes will be added.
- **Unsanitary or Unsafe Conditions:** The absence of infrastructure and the structurally unsound fourth floor creates unsafe internal building conditions.
- **Underutilization and Economic Decline:** The building's vacancy negatively impacts the surrounding commercial environment. The building hasn't been occupied for more than 30 years.

*Blight Study Excerpts:

To identify blight areas and slum areas in the community, staff created a survey with the nine (9) conditions of blight identified in the definitions section of the Wyoming Urban Renewal Code. Staff did not utilize the conditions of slum areas as they were similar to those of blight. Staff extrapolated nine distinct characteristics of blight as defined in WY Stat. § 15-9-103(iii). The nine conditions with one option of "Other" include:

- Deteriorated or Deteriorating Structures
- Predominance of Defective or Inadequate Street layout
- Faulty Lot Layout in Relation to Size, Accessibility or Usefulness
- Unsanitary or Unsafe Conditions
- Deterioration of Site or Other Improvements
- Diversity of Ownership, Tax or Other Special Assessments
- Delinquency Exceeding the Fair Value of the Land
- Defective or Unusual Conditions which Endanger Life or Property by Fire and other causes
- Other

[illegible]

Completed by: Lonnie Olson

Date Surveyed: 5/5/2023

Criteria:	Check if this exists on site:	Description of Conditions:
Deteriorated or Deteriorating Structures	X	Several old buildings falling into disrepair Vacant buildings with broken glass
Predominance of Defective or Inadequate Street Layout	X	- large lots with few connections on east side of boundary - Poor connectivity between Horse Avenue & Morris Avenue 15th St. & 16th St.
Faulty Lot Layout in Relation to Size, Accessibility or Usefulness	X	- Many places not platted since "Original City". - Platted roads break up lots - Large lots in certain locations that create poor connectivity
Unsanitary or Unsafe Conditions	X	- Alleys unsanitary and unsafe - Unsafe pedestrian connections on W. Ludlowway and E. 15th Street - Presence of litter

Authorized Urban Renewal Activities

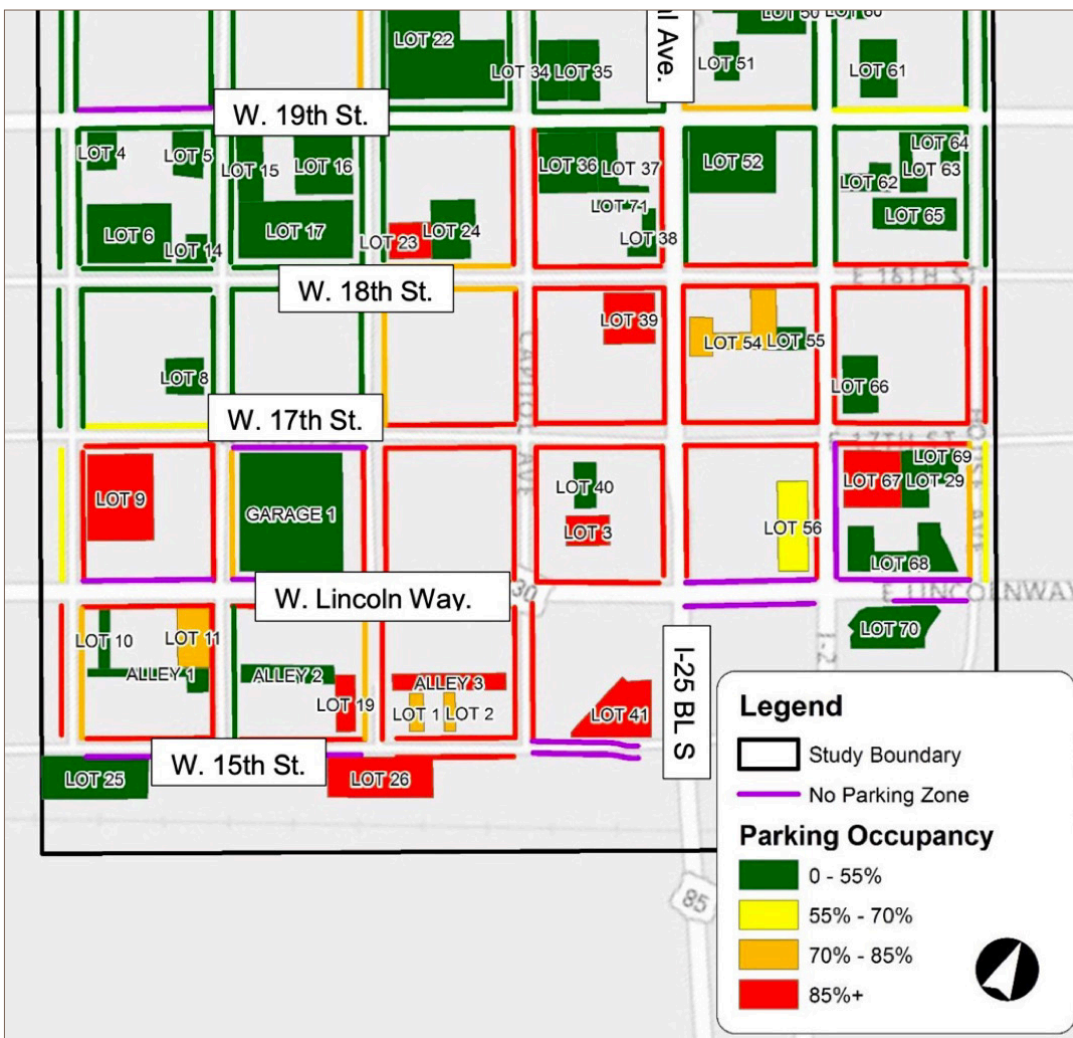
Under Wyoming Statute § 15-9-113, the following redevelopment activities will be implemented:

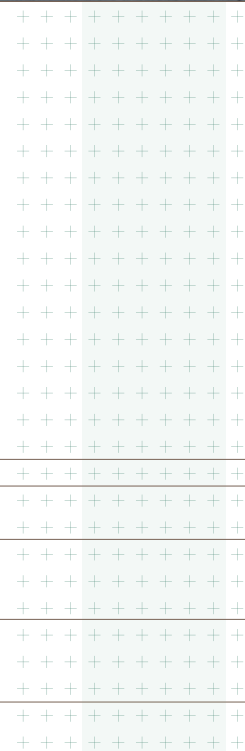
- **Generalized Rehabilitation:** Restoration of the building’s facade, structure, and interior spaces to preserve structural integrity. Phase 1 of this project, which included restoration of the storefront and windows, has already been approved for Historic Tax Credits and completed. We anticipate subsequent phases to follow suit.
- **Infrastructure Upgrades:** Improvements to streets, sidewalks, and public utilities to enhance accessibility and safety. Adding water and sewage lines to the building will be vital for redevelopment. Removing the fourth floor and adding additional structure is necessary to maintain the structural integrity for the building. Adding life safety upgrades to include emergency exits, fire and smoke alarms, stairs, and elevator access will also be an important part of this project. This will make the building ADA accessible.
- **Utility and Safety Modernization:** Installation of electrical, plumbing, HVAC, elevators, exhaust, and fire suppression systems will occur during the redevelopment.



- Commercial and Parking Redevelopment:** One storefront on the main floor will provide additional retail revenue and foot traffic to the area. The third floor will hold five market rate apartments that include studio, one bedroom, and two bedroom apartments. To ensure the success of the apartments, a portion of the on-site secure parking will need to be allocated to tenants. Primarily, though, the parking will be for the public, which has been identified as a priority for the community in the Downtown Development Authority 2024 Plan and the Downtown Strategic Parking 2016 Plan. Public parking will assist businesses, employees of downtown, downtown residents, adjacent hotel guests, and visitors with secured parking. The Bell location, in particular, often has limited parking and high demand. Similar to the City of Cheyenne's parking garage, this will be paid parking that is for public use. Public parking contributes extensively to the public benefit by supporting local business and downtown revitalization. Easy access to parking is crucial for attracting customers to businesses in downtown Cheyenne. Convenient parking options encourage higher foot traffic, leading to increased exposure and sales opportunities for businesses, ultimately boosting the downtown economy and contributing to revitalization efforts. In this particular location, parking could be a catalyst for the redevelopment of the Plains Hotel since its current occupants have no designated parking. Those attending Friday Night at the Depot, the Lincoln Theater, the Farmer's Market, and other events will have the opportunity to have their car protected from intrusion, vandalism, and hail while visiting the downtown.

**Excerpt from Downtown Strategic Parking Plan 2016*

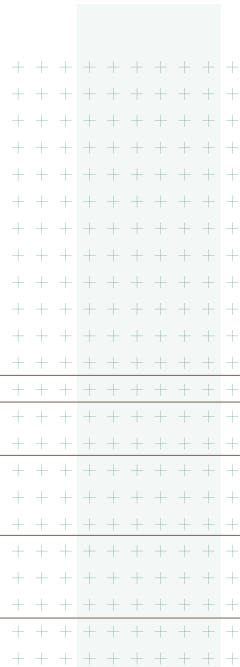




Tax Increment Financing (TIF)

Following the City of Cheyenne’s urban renewal financing framework, this project proposes using Tax Increment Financing (TIF) per Wyoming Statute § 15-9-120.

- **Base Tax Revenue:** Continues to be distributed to existing taxing authorities.
- **Incremental Tax Revenue:** Funds generated from increased property values due to redevelopment will cover project-related expenses (ie. infrastructure and site improvements) which will be divided as follows:
 - a. That portion of the taxes which would be produced by the rate upon which the tax is levied each year by or for each of the taxing agencies upon the total sum of the assessed value of the taxable property in the urban renewal project as shown upon the assessment roll used in connection with the taxation of the property by the taxing agency, last equalized prior to the effective date of the urban renewal project shall be allocated to and, when collected, paid into the funds of the respective taxing agencies as taxes by or for those taxing agencies on all other property are paid; and
 - b. That portion of the levied taxes each year in excess of the amount specified in paragraph (a) of this section shall be allocated to and, when collected, paid into a special fund of the City of Cheyenne to pay the principal and interest on loaned money advanced to, or any indebtedness (whether funded, refunded, assessed, or otherwise) incurred by the City or the Urban Renewal Authority, unless the total assessed valuation of the taxable property for the aforementioned properties exceeds the total assessed value of the taxable property in the project as shown by the last equalized assessment roll referred to in paragraph (a) of this section, all of the taxes levied and collected upon the taxable property in the urban renewal project shall be paid into the funds of the respective taxing agencies. When any loans, advances and indebtedness, if any, and interest have been paid in full, all monies thereafter received from taxes upon the taxable property in the urban renewal project shall be paid into the funds of the various taxing agencies as taxes on all other property are paid.



The tax increment will be used to fulfill the purposes of Wyo. Stat. § 15-9-121, which reads:

In any urban renewal plan or in proceedings for the advance of monies or making of loans or the incurring of any indebtedness by the municipality or agency to finance or refinance in whole or in part the urban renewal project, the portion of the taxes specified in W.S. 15-9- 120(a)(ii) may be irrevocably pledged for the payment of the principal of and interest on those loans or advances or that indebtedness.

The City will utilize the TIF to pay principal and interest on loans the City or a designated developer(s) receives for the purposes of carrying out the activities specified in this plan.

Estimated Cost of the Project:

Parking Structure: \$70,000/space, 32 spaces	2,240,000
Apartments and Retail: \$400/sq foot, 7000 sq ft	2,800,000
Removal of 4th floor	50,000
Addition of sprinkler system, emergency exits, and elevator	500,000
Addition of utilities for water and sewer	70,000
Soft costs: 20% of project	1,132,000
TOTAL	6,792,000



Plan Financing

The Bell Building Urban Renewal Plan and Project will be funded through a combination of:

- **Tax Increment Financing (TIF) revenues.**
- **Private investment and developer contributions.** 2720 Capitol, LLC has partnered with Pinnacle Bank for this project and will use private reserves for a portion.
- **Grants** for historic preservation and economic development. Joint Powers Board and DDA funding will be pursued.
- **Historic Tax Credits.** These have already been applied for initially and awarded for Phase 1 in the summer of 2024. There is a time limit of 5 years to complete all of the phases of this project to attempt to receive the tax credits.

The base tax collected of this property is currently \$3604.09 per year. With the additional of one storefront, five lofts, and an automatic parking garage structure, the building is expected to exceed 6M in appraised value. This would increase the annual tax base to approximately \$50,000, an increase of \$46,396 annually*. Over twenty years this could potentially convert to approximately \$927,918 of TIF funding.

Estimated Cost of the Project:

Parking Structure: \$70,000/space, 32 spaces	2,240,000
Apartments and Retail: \$400/sq foot, 7000 sq ft	2,800,000
Removal of 4th floor	50,000
Addition of sprinkler system, emergency exits, and elevator	500,000
Addition of utilities for water and sewer	70,000
Soft costs: 20% of project	1,132,000
TOTAL	6,792,000

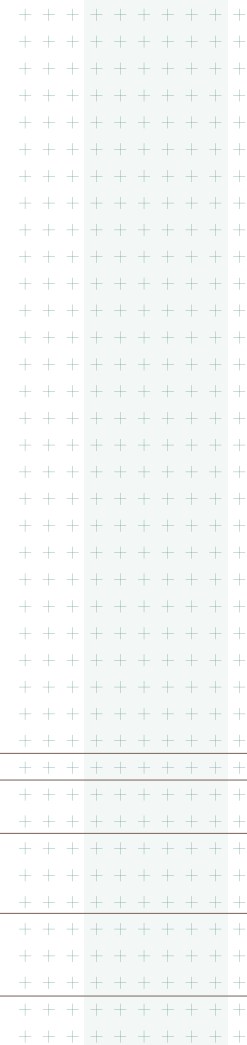
*Projected annual TIF revenue estimates are based on actual assessor data.

Conformance with Comprehensive Plan

The Bell Building Urban Renewal Plan and Project aligns with the PlanCheyenne goals and policies, specifically:

- **Policy 1.1 and Policy 1.2.A:** Supporting urban growth.
- **Policy 1.4.B:** Encouraging adaptive reuse of historic structures for future revitalization.
- **Policy 1.4.C:** Encouraging continued renovation, building reuse, and restoration in the downtown core.
- **Policy 2.3.B:** Enhancing mixed-use development within the downtown core by providing secure parking, retail and loft living.
- **Policy 3.2.F:** Adding compatible off street parking.
- **Policy 3.4.C:** Promoting parking between buildings inside of in front of buildings.
- **Policy 5.1.A:** Restoring a historic building.

Additionally, this plan conforms to zoning and land use regulations outlined in Cheyenne’s comprehensive framework.



Conformance with Wyoming Statutes

In order for an Urban Renewal Plan and Project to be approved the Governing Body must find that the plan meets the review criteria found in Wyo. Stat. § 15-9-110(a) and (b). The Bell Building Urban Renewal Project Plan Specifically meets the following of these criteria:

The urban renewal plan conforms to the general plan of the municipality as a whole;

(PlanCheyenne, Downtown Development Authority 2024 Plan)

The urban renewal plan affords maximum opportunity, consistent with the municipality’s needs, for the rehabilitation or redevelopment of the urban renewal area by private enterprise.

Nonresidential uses are necessary and appropriate to facilitate the proper growth and development of the community in accordance with sound planning standards and local community objectives.

This plan also complies with Wyo. Stat. § 15-9-101 which establishes that there is slum and blight in urban areas throughout Wyoming particularly regarding:

- **Blight determination and redevelopment justification**
- **Urban renewal authority powers and project execution**
- **Tax Increment Financing (TIF) mechanisms and fiscal policies**

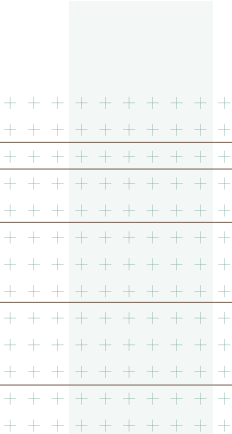
Finally, “The Urban Renewal Authority established criteria in June of 2022 to aide in deciding whether a project should be awarded tax increment financing. The criteria are shown below”.

1. The project is within an area determined to be blighted by the Governing Body. The blight determination must be detailed in a Blight Study and adopted by the Governing Body through resolution;

This was completed by the City of Cheyenne Governing Body on July 10, 2023.

2. The project is in accordance with the development policies and physical patterns identified in the Comprehensive Plan and any other official plans and policies for the specified area; **Completed via this document.**

3. The project has demonstrated a financial feasibility gap or may not be constructed without the tax increment financing assistance; **TBD by the 3rd Party Assessor. Based on current projections, this project is not feasible without TIF assistance.**



- 4. The project development team has demonstrated experience in completing projects of similar complexity to the proposed project; **A team of experts with experience in large scale projects and historic preservation has been assembled. This includes: 5R Construction (Carey Junior High, Archer, Botanic Gardens) and Megin Rux (Lincoln, the Met). 2720 Capitol, LLC’s project portfolio includes the renovation of the Grier Building, the old Owl Inn, and Best Med Urgent Care.**
 - 5. The project development team has demonstrated the financial capability of completing the proposed project with the tax increment financing assistance; **We have partnered with Pinnacle Bank on this project.**
 - 6. The project responds to existing or future market conditions or fulfills a significant need in the community; **There have been multiple parking studies and surveys conducted identifying lack of parking and lack of downtown housing as hindrances to visitation and economic development. Some of these are referenced in this document.**
 - 7. The project will result in increased job creation, tax generation, development, or other economic development considerations in the immediate vicinity of which it is proposed; **This will increase the tax basis of this and adjacent properties, add downtown residents, promote further downtown visitation and spending, and aid in a parking solution for the Plains Hotel.**
 - 8. Any other criteria deemed appropriate by the Urban Renewal Authority.
- Improvements that primarily serve private interests are ineligible for public funding, even where incidental public benefits may exist. Public funds may only be applied where the improvement is structured to provide a direct, measurable, and enforceable return to the public consistent with the Wyoming State Statutes and Wyoming Constitution.*

Plan Term and Amendment Procedures

The Bell Building Urban Renewal Plan and Project will be in effect for 25 years from adoption by the City of Cheyenne. The Plan will be effective pursuant to Wyoming Statute § 15-9-111 (b). If the Governing Body determines that all projects have been completed, and all debts and expenses incurred by the Authority to finance those projects have been repaid, it may declare this Plan fully implemented. At that time, all tax collections from the Plan Area shall be directed to the appropriate taxing entity’s funds.

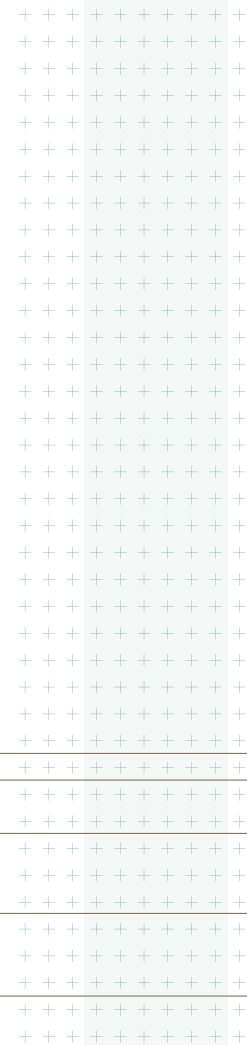
Any amendments to this Plan shall follow Wyo. Stat. § 15-9-111(a). All modifications will be submitted by the Urban Renewal Authority Board to the City of Cheyenne Governing Body for approval by Resolution.

Conclusion

The **Bell Building Urban Renewal Plan and Project** presents a strategic vision for revitalizing a historic downtown property. By addressing blight conditions, promoting economic development, and enhancing Cheyenne’s urban core, this project will:

- Preserve a historically significant structure while modernizing infrastructure.
- Attract businesses, residents, and visitors to support downtown vitality.
- Add residents to downtown.
- Leverage public-private partnerships for sustainable growth in the downtown area while solving a parking problem.

This plan is submitted for approval by 2720 Capitol, LLC and MBX Architecture, in coordination with the City of Cheyenne Urban Renewal Authority.





A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Planning Commission
From: Charles W. Bloom, AICP, Planning and Development Director
Subject: Bell Building Urban Renewal Plan and Project
Date: September 15, 2025

Recommended Motion:

Move to **recommend approval** of the Bell Building Plan and Project noting the plan has been modified to reflect the Urban Renewal Authority Board's recommendation.

Background:

The Urban Renewal Authority (URA) Board reviewed this item at their meeting on September 4, 2025, and recommended approval with the following condition:

"Prior to Planning Commission consideration, the applicant revise the Authorized Urban Renewal Activities section (p 8) of the Plan and Project to ensure alignment with Wyoming Statute § 15-9-113 and established standards for expenditure of public funds as follows:

- a. Historic Rehabilitation subsection. References to "historic rehabilitation" shall be revised to "general rehabilitation" clearly serving a public purpose or providing a community benefit and not serving solely private interests.
- b. The following additional language shall be incorporated: "Improvements that primarily serve private interests are ineligible for public funding, even where incidental public benefits may exist. Public funds may only be applied where the improvement is structured to provide a direct, measurable, and enforceable return to the public, consistent with Wyoming State Statutes and the Wyoming Constitution."

Attached is the memorandum that was presented to the URA Board at its meeting. The prior Plan and Project document has been removed, and a revised Plan and Project satisfying the URA's recommendation has been attached. Revisions for condition a in the first bullet point are on page 10 and updates for condition b are in italics at the bottom of page 18. The URA provided document can be found on the URA website on the September 5, 2025, agenda (www.cheyennecity.org/URA).

Attachments:

1. Memo to the URA Board (without URA-submitted Plan and Project)
2. Updated Bell Building Plan and Project (Dated September 5, 2025)



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Urban Renewal Authority Board
From: Charles Bloom, AICP, Planning and Development Director
Subject: Bell Building Urban Renewal Plan and Project
Date: September 4, 2025

Recommended Motion:

Move to **recommend approval** of the Plan and Project with the following plan and project modification:

1. Prior to Planning Commission consideration, the applicant revise the Authorized Urban Renewal Activities section (p 8) of the Plan and Project to ensure alignment with Wyoming Statute § 15-9-113 and established standards for expenditure of public funds as follows:
 - a. Historic Rehabilitation subsection. References to “historic rehabilitation” shall be revised to “general rehabilitation” clearly serving a public purpose or providing a community benefit and not serving solely private interests.
 - b. The following additional language shall be incorporated: “Improvements that primarily serve private interests are ineligible for public funding, even where incidental public benefits may exist. Public funds may only be applied where the improvement is structured to provide a direct, measurable, and enforceable return to the public, consistent with Wyoming State Statutes and the Wyoming Constitution.”

Synopsis:

The City of Cheyenne adopted Ordinance No. 4381 and Resolution No. 6156 on June 28, 2021, authorizing the creation and use of powers for the Urban Renewal Authority. This action fulfilled the requirements in Wyo. Stat. § 15-9-106, § 15-9-107, § 15-9-133, and § 15-9-134 as the Governing Body adopted a resolution declaring one or more slum or blighted areas in the community and that the redevelopment of such areas are necessary for the health, safety, morals or welfare of the community; and the Governing Body delegated the authorities of Urban Renewal to the Cheyenne Urban Renewal Authority. By completing the previous actions and pursuant to Wyo. Stat. § 15-9-106, the City of Cheyenne has completed the prerequisites to exercise the authority conferred by the Wyoming Urban Renewal Code.

This plan serves to establish the Bell Building Urban Renewal Plan and Project for the City of Cheyenne. The Governing Body adopted Resolution No. 6334 on July 10th, 2023, declaring the area as blight pursuant to § 15-9-107, thus making the area eligible for an Urban Renewal Plan and Project. The Bell

Building Urban Renewal Plan will overview the urban renewal boundaries of the project area, authorized urban renewal activities, general project financing, general terms of the plan, the conformance of the urban renewal project with adopted City of Cheyenne plans, the conformance of the project with Wyo. Stat. § 15-9-110, and the procedures to amend the plan. Upon review and recommendation by the Urban Renewal Authority Board, the Plan will be reviewed by the Planning Commission for recommendation to the Governing Body. The Governing Body may elect to adopt the Plan by resolution. The creation of the plan and adoption thereof serves to enable and fulfill Wyo. Stat. § 15-9-107 through § 15-9-111, § 15-9-113, § 15-9-115 through § 15-9-116, and § 15-9-119 through § 15-9-132.

The applicant proposes the following Authorized activities which are described on pages 10 and 11 of the Plan and Project document:

1. Historic Rehabilitation
2. Infrastructure Upgrades
3. Utility and Safety Modernization
4. Commercial and Parking Redevelopment

Analysis of Eligible Activities

Eligible activities are highlighted in the Plan and Project document at a high level, and the mention of them in this document does not automatically classify the activities as eligible. Eligible activities will be clearly defined in conjunction with the latter development agreement for tax increment financing (TIF). The development agreement will incorporate exhibits detailing all expenses and eligible expenses subject to TIF reimbursement.

Staff reviewed the proposed activities and noted that certain descriptions could be interpreted in a manner inconsistent with statutory authority and constitutional limitations on the use of public funds. In particular, the reference to “historic rehabilitation” does not appear in statute and could be viewed as an activity serving a narrow or private interest rather than a general public purpose, particularly regarding the historic integrity of interior spaces. To address this, staff’s recommendation includes a condition to modify the document to frame it as “general rehabilitation” with the requirement that such activities demonstrate a clear public purpose or community benefit. This does not prohibit funding façade improvements or similar items that are on the exterior of the building that support historic preservation nor does it prohibit funding structural or safety improvements (therefore allowing the reuse of a historic structure).

In addition, staff has recommended a condition that overarching clarifying language be added to ensure that improvements primarily serving private interests are not eligible for public funding. This condition establishes that public expenditures must be structured to provide a direct, measurable, and enforceable return to the public, consistent with Wyoming State Statutes and the Wyoming Constitution. Staff notes that further discussion will be necessary regarding the funding of “parking” in conjunction with the future development agreement to ensure that it is publicly accessible to a reasonable extent and that the public access is genuine, enforceable, and not merely incidental to private use.

Soft costs, including programming, financing, and application fees, may be eligible for reimbursement through tax increment financing (TIF) as defined in the final TIF development agreement. Reimbursement amounts will not necessarily be on a dollar-for-dollar basis but may instead be

calculated as a percentage of total project costs, proportionate to the portion of the project determined eligible for public funding.

Analysis of Estimated Costs and Increment

The applicant has identified an estimated project cost of about \$6,790,000 (p.14). Included in those costs is a breakdown, showing \$50,000 to remove the structurally unsafe 4th floor, \$70,000 for the addition of water and sewer, and \$500,000 for the addition of a sprinkler system, emergency exits, and an elevator. These types of costs would generally be considered eligible if there is a defined gap in funding, the cost identified is necessary to make the building functional for any type of use, and demonstrates a bona fide public benefit. If these three expenses are included in their entirety, along with their portion of the soft costs, these expenses would total about \$740,000. The applicant has indicated an intention to also use TIF for funding part of the costs to create parking. Should elements of the applicant's requested expenses be deemed ineligible upon the more in-depth analysis done at time of the TIF development agreement, there still appears to be worthwhile eligible expenses associated with the project.

The Plan and Project anticipates that the improvements will generate an increment of about \$930,000 (p 15) over a 20-year period. These numbers are hard to accurately predict until the project has been fully designed, appraised, and assessed. In discussion with the County Assessor in April of 2025, he anticipated an increment generation of about \$790,000 based on information provided to him at that time. Again, these are estimates and are subject to further refinement.

The future TIF development agreement will define the final increment to be collected based on the eligible expenses and the identified gap in project financing. In determining a financial gap, a reasonable ROI (Return on Investment) is considered.

In the event an increment fails to perform as anticipated due to low assessments, changes in market conditions, or changes in property assessment or tax collection law, the deficiency is assumed by the developer. All TIF projects are reimbursement based, and reimbursements are made until either the increment meets the approved amount, or the tax increment collection expires.

Conclusion

Overall, approval of the plan will help aid redevelopment within an area determined as slum and blight. This is a small plan and project within this area. Improvement to this property will have positive effects and help prevent the spread of slum and blight in the blight designation area. The City's use of tax increment financing, enabled by Wyo. Stat. § 15-9-120, to aid in the completion of the requested objectives, as conditioned in this approval, is appropriate.

Recommendation:

Staff recommends **approval** of the Plan and Project with the following plan and project modifications:

1. Prior to Planning Commission consideration, the applicant revise the Authorized Urban Renewal Activities section (p 8) of the Plan and Project to ensure alignment with Wyoming Statute § 15-9-113 and established standards for expenditure of public funds as follows:
 - a. Historic Rehabilitation subsection. References to “historic rehabilitation” shall be revised to “general rehabilitation” clearly serving a public purpose or providing a community benefit and not serving solely private interests.
 - b. The following additional language shall be incorporated: “Improvements that primarily serve private interests are ineligible for public funding, even where incidental public benefits may exist. Public funds may only be applied where the improvement is structured to provide a direct, measurable, and enforceable return to the public, consistent with Wyoming State Statutes and the Wyoming Constitution.”

Attachments:

1. ~~Bell Building Urban Renewal Plan and Project~~
Removed and incorporated as Resolution Attachment A with
URA recommended conditions.